JURY BUNDLE

IN THE CROWN COURT AT ASHCOMBE · Case No: T20267041

REX *v* **ELLEN HARRISON** · Count 1: Murder

JUROR No. 7

NOT TO BE REMOVED FROM THE COURT BUILDING

AGREED FACTS

Admitted under section 10 of the Criminal Justice Act 1967. You must treat these facts as proved.

1. Graham Hale, 64, a retired engineer, lived at 16 Orchard Close, Ashcombe, with his wife Carol. The defendant, Ellen Harrison, 31, lived next door with her partner Ryan Mercer and her dog, Pepper. She has no previous convictions and no history of mental illness.

2. In 2024 the Hales complained to the council about the Harrisons' hedge and extension. On 21 August 2025 the defendant texted a friend: *"I swear I could kill that man."*

3. Since 2023 the defendant's wages had been paid into Mr Mercer's sole account, her phone shared its location with his, and in February 2026 her sister Grace's number was blocked on her phone. On 17 January 2026 Mr Hale called police after seeing a man push a woman against the fence at No. 14 (Exhibit KW/1).

4. On 9 March Pepper was sick after a walk. A vet found no sign of poisoning. Mr Hale never poisoned Pepper, and never filmed or followed the defendant.

5. At about 22:00 on 12 March the defendant made a 23-second call, number withheld, to Grace. Grace says Ellen whispered: *"He says I have to sort it out or he's going,"* then hung up.

6. At 23:52 on 13 March the defendant searched online: *"is it legal to protect your dog from a neighbour"*.

7. On 14 March Mr Mercer left for work at 06:30. At 07:34 he texted: *"Well?"* He deleted it from his phone; it was recovered from hers. At trial he refused to answer whether he had threatened her the night before.

8. At 07:41 the defendant took a kitchen knife, knocked at No. 16, and stabbed Mr Hale four times when he opened the door. Police found her sitting calmly on her garden wall. Mr Hale died at 08:30.

9. The defendant accepts that she killed Mr Hale and intended to kill him or cause him really serious harm. She had taken no alcohol or drugs.

S. Harcourt
Simon Harcourt KC, for the Prosecution

Kate Adeyemi
Kate Adeyemi KC, for the Defendant

From your lecturer: you are Juror 7. You have sat through a two-week trial. Everyone agrees Ellen killed Mr Hale. Is it murder or manslaughter by diminished responsibility? Read these 6 pages in order (about 15 minutes), answer the **route to verdict** on page 6, then enter your answers on the Moodle assignment page. Then talk to someone who voted the other way!

Photocopy of a page you kept from the Gazette, March 2026. You read this before you knew you would be a juror.

ORCHARD CLOSE

‘She just sat on the wall and waited’

Retired engineer stabbed on his own doorstep in quiet cul-de-sac

BY HELEN MARSH · CRIME REPORTER



Police officers guard a cordon in Orchard Close, Ashcombe, on Saturday, where a forensic tent was put up outside the home of Graham Hale. ***Picture: Gazette***



Graham Hale**, pictured on his allotment last summer.* ***Picture: family handout

“She was completely calm. She said good morning to me.”

A woman of 31 has been charged with murder after a retired engineer was stabbed on the doorstep of his home in Orchard Close, Ashcombe, on Saturday morning.

Graham Hale, 64, was taken to Ashcombe General Hospital but died less than an hour later. His wife, Carol, 61, was in the house at the time.

Ellen Harrison, of Orchard Close, appeared before Ashcombe magistrates yesterday and was remanded in custody. She spoke only to confirm her name and address.

Neighbours described a long-running dispute between the two households over a hedge and a planning application. “There was bad blood, everyone knew that,” said one resident, who asked not to be named. “But it was the usual cul-de-sac stuff. Nobody expected this.”

Another neighbour, Dev Lal, 47, said he saw Ms Harrison sitting on a garden wall with “blood on her sleeves” when police arrived. “She was completely calm. She said good morning to me. That's what I can't get out of my head.”

Another resident said Ms Harrison was “hardly ever seen without her partner”. “She used to wave. Then she stopped looking at anyone,” she said. “Police were round there in January, I know that much.”

A 36-year-old man from Orchard Close was arrested on Sunday on suspicion of encouraging murder. He has been released under investigation.

Mr Hale was a former chairman of the Ashcombe Allotment Society and a volunteer at the town's food bank. His family said: “Graham was a gentle man who loved his garden, his grandchildren and his community. We cannot understand why this has happened.”

Wessex Police said enquiries were continuing.

► **Continued on page 6**

SATURDAY MORNING. Residents said they heard a woman screaming shortly before 7.45am. Two police cars and an ambulance arrived within minutes. The close was sealed off until late on Sunday.

IN BRIEF

Bypass work to begin in May

Work on the long-awaited Ashcombe eastern bypass will begin on May 11 the county council has confirmed. Drivers are warned to expect overnight closures on the A3612 for up to nine weeks.

Food bank appeal after record winter

Ashcombe Food Bank handed out 4,200 parcels between November and February, its busiest winter ever. Tinned fruit, UHT milk and toiletries are most needed. Donations can be left at St Aldhelm's church hall.

Rovers edge derby

A late header from captain Liam Pocock gave Ashcombe Rovers a 2-1 win over Wellsbury Town on Saturday, lifting them to fourth in the Western League.

HENDRY'S
CARPETS & FLOORING
SPRING SALE
UP TO 40% OFF
Unit 4, Mill Lane Trading Estate
Free fitting on orders over £500



Floral tributes left at the entrance to Orchard Close yesterday. ***Picture: Gazette***

‘A pillar of this town’

Tributes have been paid to Graham Hale by friends at the Ashcombe Allotment Society and the food bank, where he volunteered every Thursday. “He'd give you the shirt off his back, and then some runner beans,” one friend wrote.



Allotment plots ‘could be lost’ to housing plan

BY TOM ELLERY-BANKS

gardeners at the Ashcombe allotments on Weir Road

ASHCOMBE MOTORS
Servicing · Tyres · Repairs

CLASSIFIED

FOR SALE. Oak dining table, 6 chairs, good cond. £120 ono Buyer collects. 07700 900 512.

WANTED. Old fishing tackle, reels, flies. Cash paid. Ring Derek 01632 960 771.

SITUATIONS VACANT. Part-time cleaner, Tues & Thurs am, St Aldhelm's Primary. Apply to school office.

LOST. Grey tabby cat, answers to Mungo, Weir Road area

WESSEX POLICE

Criminal Investigation Department · Major Crime Team (West)

RECORD OF INTERVIEW

Form MG15 · Summary/transcript of recorded interview

Person interviewed	**HARRISON, Ellen** (DOB 11/07/1994)	**URN**	52WP0314126
Place of interview	Ashcombe Custody Suite, Interview Room 3	**Date**	15/03/2026
Time commenced	14:05	**Time concluded**	14:46
Interviewing officer(s)	DC 4471 Rachel OWUSU · DS 2210 Ian PRYCE		
Other persons present	Mr Tarun KAUR, solicitor (Kaur & Webb LLP)		
Recording reference	DIR/WP/26/03/1147	**Offence**	Murder of Graham HALE

Caution given at 14:06 and understood: *"You do not have to say anything. But it may harm your defence if you do not mention when questioned something which you later rely on in court. Anything you do say may be given in evidence."* Assessed as fit to be interviewed by the custody nurse at 12:30.

Counter	Speaker	Transcript (extract; officer's introductions and legal rights omitted)
02:10	DC OWUSU	Ellen, tell me in your own words why you went to Mr Hale's house yesterday morning.
02:18	HARRISON	Because it had to be done. Ryan said it had to be done.
02:31	DC OWUSU	What did Ryan say had to be done?
02:35	HARRISON	He didn't say "kill him". He never says things straight out. He says, "You know what you need to do," and then he waits. And if you get it wrong, it's worse.
03:02	DC OWUSU	Did you believe Mr Hale was poisoning Pepper?
03:09	HARRISON	(pause) Ryan believed it. When Ryan's sure about something, it's easier to be sure too. If I said I wasn't sure, he'd say I was taking Graham's side. That I was having an affair with him. He's sixty-four.
03:40	DS PRYCE	Is this about the hedge? The planning objection?
03:44	HARRISON	The hedge was before. Ryan used the hedge. He'd say, "You hated him first, don't pretend you didn't."
04:41	DS PRYCE	Ryan was in Bath. You were on your own for an hour. Why didn't you ring someone?
04:49	HARRISON	Who? He's got my phone on the app. He sees who I call. Grace's number is blocked. I don't have any friends here. That was the point of here.
06:12	DS PRYCE	You could have gone to Mr Hale himself.
06:20	HARRISON	(long pause) He did say that. He said I could knock any time. (crying) I did knock.
07:50	DC OWUSU	Did you know that what you were doing was against the law?
07:55	HARRISON	Yes. Of course. I'm not mad. I knew it was wrong. I just couldn't see a way of not doing it. It felt like the only door in the room.
08:30	DC OWUSU	How do you feel about Mr Hale now?
08:36	HARRISON	(crying) He was nice to me. He was the only one who was. Is Carol all right? I didn't want Carol to see.

Transcribed by
J. Whitcombe · Civilian investigator 7731

Checked by (officer)
R. Owusu DC 4471

Date
18/03/2026

WESSEX POLICE
Force Control Room

INCIDENT LOG

WP-20260117-0917 · 17/01/2026 · 14 Orchard Close

EXHIBIT KW/1

Time	Log entry (extract)
16:52	999 call from HALE Graham (neighbour, No 16). Saw MALE push FEMALE hard against fence in rear garden of No 14. Female fell. Male shouting "YOU EMBARRASS ME". "Not the first time I have heard shouting."
17:31	At scene. Female ELLEN HARRISON states she slipped on decking. Graze L elbow, redness L cheek. Male RYAN MERCER present.
17:38	Male refused to leave room while female spoken to: "it's my house". Female looked at male before answering. Declined risk questions.
18:04	Closed. NO FURTHER ACTION (victim declined). Leaflet for domestic abuse service left with female.

WESSEX POLICE
Digital Forensic Unit

DEVICE EXTRACTION REPORT

Defendant's iPhone · selected items

EXHIBIT DF/3

Date / time	From → To	Content
21/08/2025 22:14	Ellen → Jess W	Hale was out measuring the hedge again with a tape. I swear I could kill that man.
09/03/2026 19:02	Ryan → Ellen	Dog sick again. After walking past HIS side. You going to wait till she's dead?
09/03/2026 21:05	Ryan → Ellen	A real partner would deal with it. I'm not asking twice
12/03/2026 22:47	Ryan → Ellen	I'm done carrying this relationship. You know what you need to do. After that we're good again, I promise x
12/03/2026 22:51	Ellen → Ryan	i can't Ryan please
12/03/2026 22:52	Ryan → Ellen	Then you've made your choice
13/03/2026 23:52	Safari search	is it legal to protect your dog from a neighbour
14/03/2026 07:34	Ryan → Ellen	Well? *(deleted by sender at 07:39; recovered)*

Ashcombe Forensic Psychiatry
Independent forensic and medico-legal psychiatry

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Registered in England No. 09114872

Mr Tarun Kaur
Kaur & Webb LLP, Solicitors
31 Bridge Street, Ashcombe AS1 3BE

14 July 2026
Our ref: PN/2026/118

Dear Mr Kaur,

Re: R v Ellen HARRISON — summary of psychiatric opinion

Diagnosis. On 14 March Ms Harrison had **complex post-traumatic stress disorder** and a **severe depressive episode**, both recognised medical conditions, caused by four years of coercive control: isolation, financial control, monitoring and threats.

The earlier grievance. The hedge dispute was real but minor. Mr Mercer built on it, telling her Mr Hale was poisoning her dog. She told me: "I didn't believe it, exactly. I just couldn't not believe it." The grievance supplied the *target*; the control supplied the compulsion.

Opinion. Her ability to form a rational judgement and exercise self-control was **substantially impaired**, and her conditions **provide an explanation** for the killing. A controller is "present" even when absent. She told me: "My hand did it. But it doesn't feel like it was *me*."

Yours sincerely, *Priya Natarajan*
Dr Priya Natarajan MBBS MRCPsych
Consultant Forensic Psychiatrist (GMC 6104477). I confirm that I understand my duty to the court, and that this opinion is my own and within my expertise.

Ellery Medico-Legal
Consultant forensic psychiatry for the courts

Harbour Chambers, 9 Wharf Lane
Marlford MF2 8HQ
01632 960 552

Ms Jane Whitfield, Senior Crown Prosecutor
Crown Prosecution Service, Wessex Area
Ashcombe Office, Crown Buildings

11 August 2026
Our ref: ME/2026/0412

Dear Ms Whitfield,

Re: R v Ellen HARRISON — summary of psychiatric opinion

Diagnosis. I accept she was in an abusive, controlling relationship and diagnose a **moderate** depressive episode. I do not think complex PTSD is clearly shown.

Where I differ. Coercive control is not a medical condition: it is something done to a person. **Her thinking was intact:** she was not psychotic, knew Mr Hale was not dangerous, and told police she knew it was wrong. **She was organised:** she waited, chose a knife, knocked and harmed no one else. **She had alternatives:** for an hour she was alone, with a phone, ten metres from a man who had offered help.

Opinion. Her abilities were not **substantially** impaired. Mr Mercer's pressure explains her motive; it goes to mitigation, not diminished responsibility.

Yours sincerely, *Martin Ellery*
Dr Martin Ellery MB ChB FRCPsych
Consultant Forensic Psychiatrist (GMC 4021996). I confirm that I understand my duty to the court, and that this opinion is my own and within my expertise.

IN THE CROWN COURT AT ASHCOMBE
The Law Courts, Market Street, Ashcombe AS1 2LC

Case No: T20267041

REX

— v —

ELLEN HARRISON

DIRECTIONS OF LAW AND ROUTE TO VERDICT

1. **Evidence only.** Decide the case only on the evidence in this bundle. Ignore anything you read in the press at the time of the arrest. Do not let sympathy for anyone decide your verdict.
2. **What is admitted.** The defendant admits killing Mr Hale with intent. That would be murder unless she proves **diminished responsibility** (Homicide Act 1957, s.2). She must show it is more likely than not; she does not have to make you sure.
3. **"Substantially"** means important or weighty: more than trivial, but not total. **"Provides an explanation"** means a significant contributory factor. It need not be the only cause; she may also have had other reasons, such as a pre-existing dislike of Mr Hale.
4. **Coercive control.** Duress (acting under threat) is not a defence to murder, and coercive control is not a defence in itself. The evidence matters because the defence say it caused recognised medical conditions. Mr Mercer is not on trial; you may consider that he may have his own reasons for the account he gave.
5. **Experts.** You are not bound to accept either psychiatrist. Weigh their reasons with all the other evidence. The final questions are for you.

ROUTE TO VERDICT — answer in order.

Q1: the prosecution must prove it **beyond reasonable doubt** (so that you are sure). **Q2–4:** the defendant must prove it **on the balance of probabilities** (more likely than not).

Q1	Are you sure the defendant unlawfully killed Mr Hale, intending to kill him or cause him really serious harm? *(Admitted.)* If NO: **not guilty**.	YES ☐ NO ☐
Q2	Was she suffering from an **abnormality of mental functioning** arising from a **recognised medical condition**? If NO: **guilty of murder**.	YES ☐ NO ☐
Q3	Did it **substantially impair** her ability to understand her conduct, form a rational judgement, or exercise self-control? If NO: **guilty of murder**.	YES ☐ NO ☐
Q4	Does it **provide an explanation** for the killing, being a **significant contributory factor** (not necessarily the only one)? If NO: **guilty of murder**. If YES: **not guilty of murder, guilty of manslaughter by diminished responsibility**.	YES ☐ NO ☐

Q5 VERDICT (Juror 7): Murder ☐ Manslaughter by diminished responsibility ☐

My strongest reason:

M. Hart

HHJ Morwenna Hart KC

Please enter the defendant's name, your answers to questions 1–5 and your verdict on the Moodle assignment page.